TOWNSHIP OF LINCOLN
CLARE COUNTY
175 LAKE GEORGE AVE., P.O. BOX 239
LAKE GEORGE, MI 48633
Via Zoom
phone: [989] 588-9841 website: www.lincolntwp.com

Lincoln Township Planning Commission

Dick Hassberger – Chair ***Sharon Bridges*** – Vice Chair
Gary Szczepanski – Secretary ***Tami McCaslin*** – ZBA ex Officio
Mike Tobin – Township Board ex Officio

Roger Carey – Zoning Administrator ***Deb Trim –*** Ordinance Enforcement
David Lipovsky – Building Inspector ***Deb Sherrod*** – Recording Secretary

Regular Meeting – Tuesday, May 11, 2021, at 7:00 pm. Called to order at 7:00 pm by Chair Hassberger via Zoom.

Roll Call:
Present – Bridges, Carey, Hassberger, McCaslin, Szczepanski, Tobin, Sherrod
Absent – 0
Public – 0

Approval of Minutes:
Approval of the regular meeting minutes of April 13, 2021. Bridges made a motion to approve the minutes as corrected to remove reference to short term rental and make it just general rental. Tobin seconded. Motion passed.

Addition to Agenda: ZA Carey asked to amend the agenda to include a discussion of an amendment to the Zoning Ordinance concerning multi-frontage lots.

Zoning Administrator's Report: See Attachment #2
Hassberger made a motion to accept the Zoning Administrator's report; Tobin seconded. Motion passed.

Building Inspector Report: See Attachment #4

Tobin made a motion to accept the Building report; ~~Tobin~~ Bridges seconded. Motion passed.

Ordinance Enforcement Report: See Attachment #2
Hassberger made a motion to accept the Ordinance Enforcement report; McCaslin seconded. Motion passed.

Tobin referred to several issues brought up by the Planning Commission members at the April meeting. He reported the response from Ordinance Officer Deb Trim. Several questions were asked and discussed.

Public Comment: ZA Carey made two comments.

Old Business:
1. Revisit and discuss Rental Ordinances: McCaslin reported that she, ZA Carey, and Bridges met to make additions to the current ordinance regarding rentals. They will meet one more time and then present their results at the next planning meeting.

2. Discuss plans for Master Plan review and re-approval: Hassberger reported on his review of the existing Master Plan and asked if anyone would like to work on it with him to bring it up to date and make revisions. McCaslin and Bridges made several comments on what has been done in the recent past. Hassberger would like to have it ready for 2022.

New Business:
1. Discuss recent information from MAP regarding STR regulations from the state: Hassberger just wanted to make sure that everyone has the materials and knows what is going on at the state level.

2. Discuss amendment to Zoning Ordinance: ZA Carey presented an amendment that would include definitions for a triple frontage lot (see Attachment #1). McCaslin emphasized that the action on this amendment needs to follow the proper procedure as written in Article 9. The next step is for the Planning Commission to schedule a Public Hearing at the June 15 Planning Commission meeting to discuss this amendment and make a recommendation to the Township Board to either adopt it or not.

Announcements: Next Regular Meeting will be Tuesday, June 15, 2021, at 7:00 pm.

Motion by Bridges to adjourn the meeting; seconded by McCaslin. Motion passed with all in favor. Meeting adjourned at 8:00 p.m.

Respectfully Submitted,

Gary Szczepanski, Secretary

Attachment #1

Amendment Proposal for multi-frontage lots
Lincoln Township Zoning Ordinance

Lot Coverage: The amount of a lot, stated in terms of a percentage (%), which is covered by all buildings and structures located thereon in addition to all areas comprised of wood, asphalt, concrete, stone, brick and similarly hard-surface materials and simulated materials of the same, but shall not include fences or walls.

Lot Depth: The distance from the front lot line of the lot to its opposite rear line, measured midway between the side lot lines.

Lot Lines: The lines bounding a lot. See Figure 21-4 at end of this Article.

a. Lot Line, Front:

1. In the case of a lot not located on a corner, the line separating said lot from the road right-of-way or easement from which it gains access.
2. In the case of a corner lot, the front lot line shall be the shorter of the two (2) lines separating said lot from the adjacent road right-of-ways or easements unless designated otherwise on a recorded plat.
3. In the case of a through lot, the front lot line shall be as designated on the plot plan or site plan, subject to approval of such plan.
4. In the case of a flag lot, the front lot line shall be the interior lot line most parallel to and nearest the road from which access is obtained.
5. In the case of a waterfront lot, the front lot line shall be the line comprising the ordinary high water mark or, where a seawall has been erected, the edge of the water along such seawall.

b. Lot Line, Rear: The lot line opposite and most distant from the front lot line. In the case of a triangular or otherwise irregularly shaped lot or parcel, an imaginary line at least ten feet in length entirely within the lot or parcel, parallel to and at a maximum distance from the front lot line.

c. Lot Line, Side: Any lot line other than a front or rear lot line (*see Figure 21-3 at end of Article).*

Lot, Triple Frontage: A corner lot with street frontage on three (3) sides shall have the following lot lines for setback purposes. a. If the dwelling is oriented toward one of the two (2) parallel streets, the lot shall have two (2) front lot lines and two (2) front yards, a street side lot line and street side yard, an interior side lot line and interior side yard, and no rear lot line and rear yard. b. If the dwelling is oriented toward the middle street, the lot shall have three (3) front lot lines and three (3) front yards abutting the streets, and a rear lot line and rear yard.

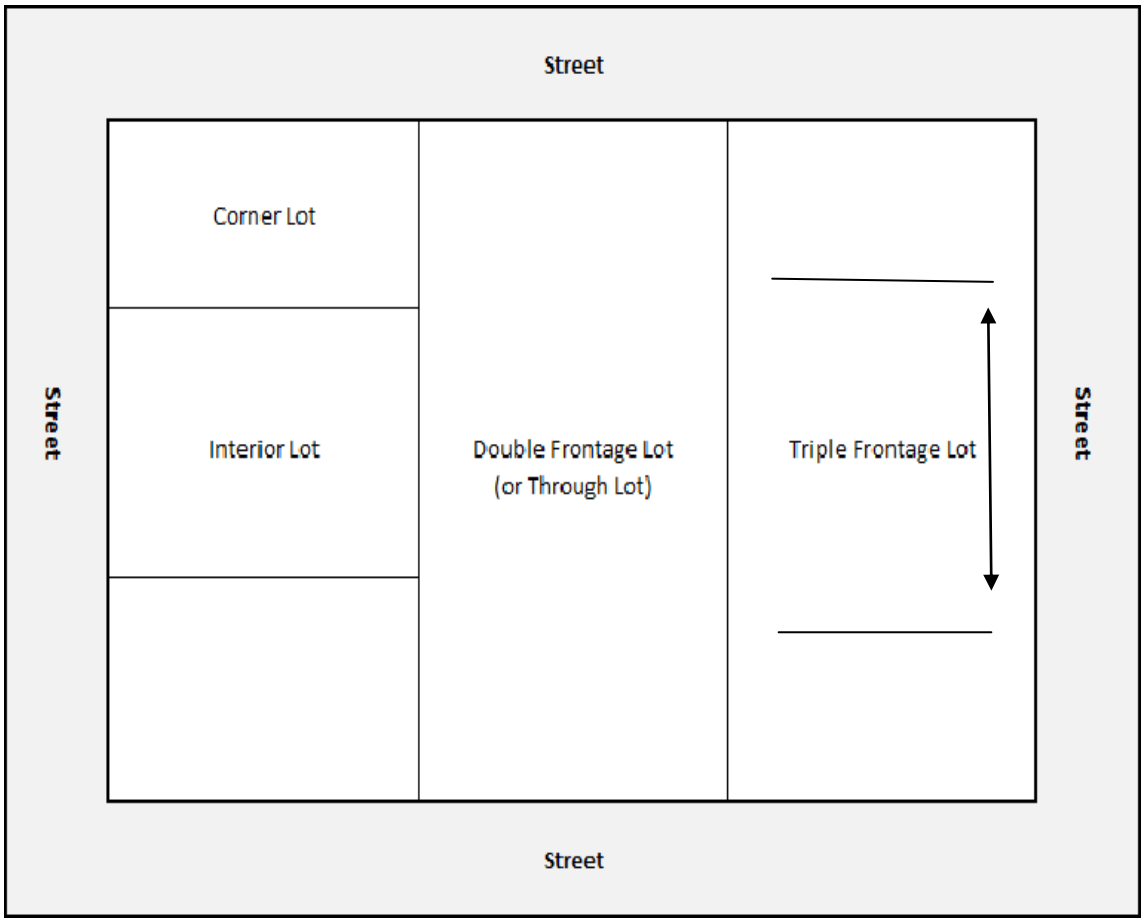
Lot, Waterfront: A lot having frontage on a natural lake that has an average annual surface area of twenty (20) acres or more. For the purpose of this definition, “natural

lake" shall be defined as a water body that exists due to predominantly natural landform depressions and drainage patterns.

Lot, Through: A lot having frontage on two (2) roads other than a corner lot *(see Figure 21-2).*

EXAMPLE

Our ordinance says Triple frontage lots have three front yards.



Front yard setback 50 feet

Side yard setback 10 feet or Table 3-4 paragraph 6

Setbacks for triple frontage lots

Attachment #2

Township of Lincoln

(*Clare County*) P.O. Box 239 Lake George, Michigan 48633-0239
phone: [989] 588-9538 website: www.lincolntwp.com e-mail: mcarey55@charter.net
Roger Carey **-** Zoning Administrator

Zoning Administrator Report
April 2021

Zoning Applications

1. 4-9-21 received a zoning application for deck and fence at 466 W. Shingle Lake Dr. approved
2. 4-9-21 received a zoning application for a new residence with attached garage at 5681 N. Old State Ave. approved
3. 4-9-21 received a zoning application for a fence at 2126 Deer Ct. approved
4. 4-11-21 received a zoning application for an addition and pole barn at 4355 Browns Rd. approved
5. 4-14-21 received a zoning application for an addition at 2640 Devon Tr. Approved
6. 4-17-21 received an application for an addition to garage at 1651 S. Old State Rd. approved
7. 4-21-21 received an application for a land division at 928 S. Bringold Ave. approved
8. 4-18-21 received a zoning application for a home addition at 1177 Forest Ave. approved
9. 4-25-21 received an application for a privacy fence at 2262 Jefferson Rd. approved
10. 4-20-21 received a zoning application for a deck at 1719 Arbor. Approved
11. 4-29-21 received a zoning application for an addition to garage at 486 Forest Ave. approved
12. 4-29-21 received a zoning application for an accessory building at 2012 Forest Ave. approved

Ordinance Complaints

1. 4-8-21 received a complaint of a deck added to a non-conforming waterfront shed at 1832 Bungo Trail.
2. 4-26-21 filed a second complaint of a deck added to a non-conforming waterfront shed at 1832 Bungo tr.
3. 4-8-21 received a complaint of a structure added to the non-conforming part of a residence at 610 Forest Blvd. resolved
4. 1-12-21 sent second complaint of recreational vehicle on vacant lot after November 1 and deck on vacant lot to owners of W.B. lot 452. 4-23-21 dropped due to time constraints.
5. 1-12-21 sent second complaint of recreational vehicle on vacant lot after November 1 to owners of W.B. lot 502. 4-23-21 dropped due to time constraints, lawyer felt as of 5-1-21 RVs could legally be placed on vacant lots, courts would rule in favor of lot owners. These complaints need to be filed sooner.
6. 4-26-21 filed a complaint of accessory building being erected, no Zoning Permit at 856 Oak DR.

Variances

Other

Signed two civil infractions for failure to remove recreational vehicle on required date, one for $100 the other for $500.

Attachment #3

Township of Lincoln

(*Clare County*) P.O. Box 239 Lake George, Michigan 48633-0239
phone: [989] 588-9841 (ext. 5) www.lincolntwp.com e-mail: ordinance103@gmail.com

April Ordinance Report

Debra Trim – Ordinance Enforcement Officer

Complaint 3-23-21 202 Maple St drove by took pictures of property full of trash, broken windows and metal. Mailed letter 3-26-21 giving 20 days to clean lot. 4-15-21 Drove by lot is cleaned up. Resolved.

Complaint 5005 White Birch 2nd notice issued last month, tried to contact owner through email and phone message on 3-28-21 Not sure mail was received and will re-send 2nd notice through certified mail 3-31-21 Drove by 4-15-21 lot cleaned up. Resolved.

Complaint 3644 Cedar Person in charge of clean up has until 4-15-21 to finish and emailed her to keep in touch to make sure it is known people are watching the process. 4-15-21 drove by lot 90% done, extended time limit for two more weeks.

Complaint 3-23-21 207 Silver Lake Dr drove by took pictures, motor home in disrepair, doubt it runs, front wheel missing. Mailed letter 3-29-21. Drove by 4-10-21 motor home removed, lot cleaned. Resolved.

Complaint 1046 Maple St complaint in Nov. 2020 and clean up in process, back to bringing car parts etc into yard. Mailed letter 3-29-21 giving 15 days to resolve matter. Owner called asking for more time regarding a car, at which time I reminded him of the debris in yard that has to picked up. Drove by 4-30-21 still not cleaned. Sent final notice.

Complaint 450 Arthur sent reminder letter 9-30-20 of on going clean up. Drove by 3-27-21 took pictures and sent letter 4-1-21. Drove by and took pictures 4-29-21 no progress, sent final notice 4-30-21.

LINCOLNTOWNSHIP IS AN EQUAL OPPORTUNITY PROVIDER

Attachment #4

Township of Lincoln

(*Clare County*) P.O. Box 239 Lake George, MI 48633-0239 phone: [989] 588-9841 website: www.lincolntwp.com
e-mail: bor@lincolntwp.com

Clare County Community Services – Building Department [989] 539-2761 www.clareco-building.net

Permits Issued for April, 2021

(Permit Number)	(Parcel Number)	(Address)	(Brief Description)
PM21 – 00075	010-640-030-00	638 Shingle Lake Dr.	Gas Line for Generator
PB21 – 00107	010-400-041-00	211 Hunters Dr.	Metal Roof
PE21 – 00121	010-030-400-15	130 Silver Lake Dr.	100 Amp Service
PB21 – 00128	010-800-160-00	1208 Arbor	Tree Damage Repair
PB21 – 00129	010-009-200-30	3247 W. Monroe	Metal Roof
PE21 – 00136	010-012-300-04	1651 S. Old State	Electrical Upgrade – Pole Barn
PB21 – 00136	010-016-400-23	2640 Devon Trail	Addition
PE21 – 00150	010-746-120-00	4330 Buckeye Ct.	Camping Service
PE21 – 00161	010-746-339-00	4901 Pine Run	Campsite
PB21 – 00174	010-340-007-01	897 Oak Dr.	Pole Barn
PB21 – 00182	010-400-012-00	305 Maple St.	11 Windows, 2 Doors
PE21 – 00205	010-004-300-19	817 S. Jackson Ave.	Electrical Service Upgrade
PE21 – 00207	010-800-125-00	1500 Arbor Dr.	Electrical Service Upgrade
PE21 – 00213	010-014-100-12	2133 W. Mannsiding	Electrical Service Upgrade
PE20 – 00612	010-746-787-00	4522 Red Fox Run	Electrical Service Upgrade - Renewal